

VCU335322 Raney, Markai vs. Flores, Michaela marie

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-27

Motion: Motion to Deem Filing of Complaint Nunc Pro Tunc

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: 6f6b403544e0c208ba8bd569c97f2fe8db5d0c4c4470c49a920f835cf84bb7f7

Re: Raney, Markai vs. Flores, Michaela marie

Case No.: VCU335322

Date: July 27, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion to Deem Filing of Complaint Nunc Pro Tunc

Tentative Ruling: To grant the motion

Facts

In this matter, Plaintiff alleges motor vehicle and negligence causes of action arising out of an incident that occurred March 26, 2024.

The Court's file reflects the complaint in this matter was filed May 22, 2026.

Plaintiff moves for an order deeming the complaint filed March 26, 2026. In support, Plaintiff's counsel and counsel's staff declare that the complaint was electronically submitted for filing on March 26, 2026, but that on April 6, 2026, Plaintiff's counsel received notice that the submission had been rejected because "names is cut off on complaint." (Declaration of Smith ¶¶5, 7; Declaration of Dobbins ¶¶5, 6 – Exs. A, C.)

Plaintiff's counsel attempted to refile the same complaint on April 6, 2026, but a notice of rejection was sent April 9, 2026 stating "Plaintiff's name is misspelled." (Declaration of Smith ¶11; Declaration of Dobbins ¶8 - Ex. B.)

On May 20, 2026, Plaintiff "copied the original filing submission and resubmitted the Complaint materials" (Declaration of Smith ¶14; Declaration of Dobbins ¶8.)

Based on this, Plaintiff argues the complaint should be deemed filed March 26, 2026 (and therefore within the statute of limitations) due to ministerial processing issues.

Authority and Analysis

Trial courts have the inherent authority to enter nunc pro tunc orders to address clerical errors, but not judicial errors. (Sannmann v. Department of Justice (2020) 47 Cal.App.5th 676, 683.) A court should grant or refuse to enter a nunc pro tunc order "as justice may require in view of the circumstances of a particular case." (Norton v. City of Pomona (1935) 5 Cal.2d 54, 62.)

"...[T]he local superior court may not condition the filing of a complaint on local rule requirements. Instead, so long as a complaint complies with state requirements, the clerk has a ministerial duty to file." (Mito v. Temple Recycling Center Corp. (2010) 187 Cal.App.4th 276, 280, quoting Carlson v. Department of Fish & Game (1998) 68 Cal.App.4th 1268, 1270.)

Under Rule of Court, rule 1.20. Effective Date of Filing: "Unless otherwise provided, a document is deemed filed on the date it is received by the court clerk."

Although uncited by Plaintiff, the Court notes the examination of filing issues in Hartford Accident & Indemnity Co. v. Gonzalez (1994) 31 Cal.App.4th 51:

"The clerk refused to file the underlying complaint because Hartford failed to provide a case information sheet pursuant to local rule 3.10 (Mun. Ct. Ventura County). The two-page case information sheet requires that the case caption and certain blanks be filled in, and that various boxes be checked. The completed sheet informs the court whether plaintiff requests: fast track, mediation, and a jury trial. It also gives the court a brief description of the nature of the case and the relief sought. Page 2 of the sheet explains that the information is requested ". . . in order that this case may be properly managed pursuant to the Delay Reduction Rules mandated by the Legislature and the Judicial Council." (Id. at 54.)

The plaintiff Hartford argued there was no statute specifically requiring it to provide a case information sheet and that the clerk could not impose such a requirement pursuant to only a local rule, which stated "[n]o case shall be filed without a completed Case Information Sheet." (Id.) The Hartford plaintiff further argued that the requirement of a case information sheet "...conflicts with Code of Civil Procedure section 412.10 which states that '[a]fter payment of all applicable fees, the plaintiff may have the clerk issue . . . summons for any defendant.'" The appellate court in Hartford upheld the decision denying the motion, finding that the requirement of a case information sheet was consistent with the Trial Court Delay Reduction Act and that "Local court rules and policies have the force of procedural statutes, so long as they are not contrary to legislative enactments.'" (Id. at 55-56.)

In Rojas v. Cutsforth (1998) 67 Cal.App.4th 774, the appellate court examined Hartford and distinguished it, noting "But in Hartford the plaintiff did not even attempt to comply with the local rule. It tendered no case information sheet at all." (Id. at 777.)

In Rojas, by contrast, the plaintiff in a personal injury action mailed the complaint to the superior court clerk for filing within the statutory period, but the clerk returned the unfiled complaint by mail because the declaration for court assignment was not signed, and the summons contained the address of the wrong branch of the court. (Id. at 776.) The statute of limitations passed. (Id.)

The trial court denied the request for a nunc pro tunc filing of the complaint and found on summary judgment that the action was barred by the statute of limitations. (Id.)

The Rojas appellate court reversed, however, finding that clerk had no proper basis for rejecting plaintiff's complaint and therefore it was deemed filed on the date that it was first deposited with the clerk. (Id. at 777.) The court there noted that function of the clerk is purely ministerial and the lack of signature was the only defect present in this matter. (Id.) Further, Rojas noted the local rule as to the court assignment form did not require it to be filed with the complaint. (Id.) As to the defect in the summons, the court noted "The second defect pointed out in the clerk's notice is that the summons did not reflect the address of the Simi Valley division of the court. Cutsforth cites no authority, however, in support of the proposition that the clerk may refuse to file the complaint if the summons contains the address of the wrong division." (Id.)

Further, the court noted "The second defect pointed out in the clerk's notice is that the summons did not reflect the address of the Simi Valley division of the court. [Defendant] cites no authority, however, in support of the proposition that the clerk may refuse to file the complaint if the summons contains the address of the wrong division..." (Id. at 778.)

Finally, the Rojas court noted "Where, as here, the defect, if any, is insubstantial, the clerk should file the complaint and notify the attorney or party that the perceived defect should be corrected at the earliest opportunity" (Id. at 777.)

Under Hartford, the total failure to file a document with the complaint precluded the relief requested here. Under Rojas, the filing of a summons containing an incorrect address, formed a basis to grant relief.

Here, the Court grants the motion, finding that the illegibility of the complaint regarding the legibility of the Defendant's name or misspelling of the Plaintiff's name to be more akin to the attempts to comply in Rojas than the total failure in Hartford.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.